

WINSTON

Terms of Service

Effective Date: April 2026 | Last Updated: April 2026

1. Agreement to Terms

These Terms of Service govern your use of Winston, a personal AI companion service. By creating an account or using Winston in any way, you agree to be bound by these Terms. If you do not agree to these Terms, do not use Winston.

These Terms constitute a legally binding agreement between you and Winston. Please read them carefully.

2. Description of Service

Winston is a personal AI companion that provides daily briefings, reminders, navigation assistance, email summaries, story capture, and other personalized services through a voice and text interface. Winston uses artificial intelligence to learn about you and provide increasingly personalized assistance over time.

Winston integrates with third-party services including Google Gmail, Google Calendar, Google Contacts, and others with your permission. Winston is not affiliated with Google, Amazon, Apple, or any other major technology company.

3. Eligibility

You must be at least 13 years old to use Winston. By using Winston, you represent and warrant that you meet this age requirement. Winston is primarily designed for adults aged 55 and over, though it is available to all eligible users.

By creating an account, you represent that all information you provide is accurate and that you will keep your account information current.

4. Account Registration and Security

Winston uses Google Sign In for account authentication. You are responsible for maintaining the security of your Google account credentials. Winston is not responsible for any loss or damage arising from unauthorized access to your account.

You agree to notify us immediately at davidblakelock01@gmail.com if you suspect any unauthorized use of your account. You may only create one account per person.

5. Subscription and Payment

5.1 Subscription Plans

Winston is offered on a subscription basis at \$10 per month for full access to all features. Pricing may change with 30 days advance notice to existing subscribers.

5.2 Billing

Subscription fees are billed monthly in advance. Payment is processed securely through Stripe. By subscribing, you authorize us to charge your payment method on a recurring monthly basis until you cancel.

5.3 Free Trial

Winston may offer a free trial period for new users. At the end of the trial period, your subscription will automatically begin unless you cancel before the trial ends.

5.4 Cancellation

You may cancel your subscription at any time. Upon cancellation, you will retain access to Winston until the end of your current billing period. We do not provide refunds for partial billing periods.

5.5 Refunds

All subscription fees are non-refundable except where required by applicable law. If you believe you have been charged in error, contact us at davidblakelock01@gmail.com within 30 days of the charge.

6. Acceptable Use

You agree to use Winston only for lawful purposes. You agree not to:

- Use Winston for any illegal purpose or in violation of applicable laws
- Attempt to gain unauthorized access to Winston's systems or other users' accounts
- Use Winston to harass, harm, or intimidate any person
- Share your account credentials with any other person
- Attempt to reverse engineer, decompile, or disassemble Winston
- Use automated means to access Winston without our written permission
- Use Winston to generate spam, phishing content, or malicious code
- Misrepresent your identity or provide false information

7. Third-Party Services and Integrations

Winston integrates with third-party services including Google, Anthropic, ElevenLabs, Supabase, and others. Your use of these integrated services is subject to their respective terms of service and privacy policies. Winston is not responsible for the practices or content of these third-party services.

You authorize Winston to access third-party services on your behalf only as you have explicitly permitted. You can revoke these permissions at any time through your account settings.

8. Important Disclaimers

8.1 Not a Medical Service

Winston is not a medical device, healthcare provider, mental health service, or emergency response system. Emma Peel is an AI companion, not a doctor, therapist, or mental health professional. Do not rely on Winston for medical advice, diagnosis, treatment, or emergency response.

If you are experiencing a medical emergency, call 911 or your local emergency services immediately. Winston's emergency protocol feature is a convenience tool only and should never replace contacting actual emergency services.

8.2 Not a Financial Advisor

Winston provides general financial information including market summaries and bill payment reminders. This is not financial advice. Do not make investment or financial decisions based solely on information provided by Winston.

8.3 AI Limitations

Winston uses artificial intelligence that may occasionally produce inaccurate, incomplete, or inappropriate responses. Emma Peel is not infallible. Always verify important information through authoritative sources.

8.4 Scam Detection Limitations

Winston's scam and phishing detection feature is designed to help identify potentially suspicious communications but is not foolproof. Always use your own judgment and consult relevant institutions directly when in doubt.

9. Intellectual Property

Winston and its original content, features, and functionality are owned by Winston and are protected by applicable intellectual property laws. You may not copy, modify, distribute, or create derivative works based on Winston without our explicit written permission.

Your personal data, stories, memories, and journal entries remain your property. You grant Winston a limited license to use this information solely to provide the Winston service to you.

10. Your Content

You retain ownership of all stories, memories, journal entries, and other personal content you create through Winston. You can export your stories and journal entries at any time. Upon account deletion, we will permanently delete all your content within 30 days.

11. Privacy

Your privacy is important to us. Our Privacy Policy, which is incorporated into these Terms by reference, explains how we collect, use, and protect your personal information. By using Winston, you agree to our Privacy Policy.

12. Termination

12.1 Your Right to Terminate

You may terminate your Winston account at any time by contacting us at davidblakelock01@gmail.com. Upon termination, your access to Winston will end at the conclusion of your current billing period.

12.2 Our Right to Terminate

We reserve the right to suspend or terminate your account if you violate these Terms or if your use of Winston poses a risk to other users or our systems. We will provide reasonable notice where possible.

12.3 Effect of Termination

Upon termination, your right to use Winston ends immediately. We will delete your account data within 30 days. Your story archive can be exported before termination upon request.

13. Limitation of Liability

To the maximum extent permitted by applicable law, Winston and its creator shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising from your use of or inability to use Winston.

Winston's total liability to you for any claims shall not exceed the amount you paid for Winston in the twelve months preceding the claim.

14. Indemnification

You agree to indemnify and hold harmless Winston and its creator from any claims, damages, losses, or expenses including reasonable legal fees arising from your use of Winston, your violation of these Terms, or your violation of any third-party rights.

15. Governing Law and Disputes

These Terms are governed by the laws of the State of Texas, United States. Any disputes arising from these Terms or your use of Winston shall be resolved in the courts of Dallas County, Texas.

Before initiating any legal action, you agree to contact us at davidblakelock01@gmail.com to attempt to resolve any dispute informally within 30 days.

16. Changes to These Terms

We may update these Terms from time to time. When we make significant changes, we will notify you through Winston or by email with at least 30 days advance notice. Your continued use of Winston after changes become effective constitutes acceptance of the updated Terms.

17. Entire Agreement

These Terms of Service and our Privacy Policy constitute the entire agreement between you and Winston regarding your use of the service. If any provision of these Terms is found to be

unenforceable, the remaining provisions will remain in full effect.

18. Contact Us

If you have questions about these Terms of Service:

- Email: davidblakelock01@gmail.com
- Address: Dallas, Texas, United States

Winston — Named after a very good dog. Built for people who deserve better from technology.